

25STCV23884 25STCV23884

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-28

Motion: PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT

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Case Number: 25STCV23884 Hearing Date: August 28, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DURANT

DYER JR.,

Plaintiff,

vs.

PARTNERS OF CHANGE, INC. (a California corporation) and

DOES 1 through 25, inclusive,

Defendants.

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CASE

NO.: 25STCV23884

[TENTATIVE] ORDER RE: PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Dept. 733

8:30 a.m.

August 28, 2026

I.

INTRODUCTION

This is a
wage-and-hour action.

On

August 14, 2025, Plaintiff Durant Dyer Jr. ("Plaintiff") filed a complaint against Defendant Partners of Change, Inc. ("Defendant"), alleging causes of action for (1) Failure to Provide Meal Periods, (2) Failure to Authorize and Permit Rest Periods, (3) Untimely Payment of Final Wages, (4) Failure to Provide Accurate Itemized Wage Statements, (5) Failure to Reimburse for Necessary Business Expenses, (6) Retaliation – Cal. Lab. Code § 1102.5, (7) Failure to Produce Personnel Records, and (8) Failure to Produce Wage Records.

On

March 18, 2026, the Court Clerk entered default against Defendant.

On

August 17, 2026, the Court Clerk dismissed DOES 1 through 25, inclusive.

On

August 17, 2026, Plaintiff filed a Request for Default Judgment.

II.

LEGAL STANDARD

Code of Civil

Procedure section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court Rule 3.1800.)

III.

DISCUSSION

SUBMITTED: CRC

3.1800

1.

Use

of JC Form CIV-100 Yes

2.

Dismissal or judgment of non-parties to the judgment Yes

3.

Declaration

of non-military status for each defendant Yes

4.

Summary

of the case Yes

5.

585(d)

declarations/admissible evidence in support Yes

6.

Exhibits (as necessary) Yes

7.

Interest computation (as necessary) Yes

8.

Cost memorandum Yes

9.

Request for attorney fees (Local Rule 3.214) Yes

Damages Summary:

Damages

\$ 81,541.30

Interest

\$ 1,211.11

Attorneys' fees

\$ 17,610.26

Costs

\$ 1,132.30

Penalties

\$ 20,000.00

TOTAL

\$ 121,494.97

Plaintiff seeks a default judgment in the amount of \$121,494.97, which includes \$81,541.30 in general and special damages, \$20,000.00 in Labor Code section 1102.5 penalties, \$1,211.11 in interest, \$1,132.30 in costs, \$17,610.26 in attorney's fees.

Plaintiff

has provided a cost memorandum as to the incurred costs, which includes \$481.00 for clerk's filing fees, \$330.00 for process server's fees, and \$321.30 for jury fees and e-filing fees. This totals \$1,132.30. However, the costs request in Plaintiff's Court Judgment CIV-100 form differs from the request in Plaintiff's proposed form of Judgment on the JUD-100 form. Plaintiff's Court Judgment CIV-100 form requests a total of \$937.70 in costs.

For any damages

claimed, "Plaintiffs

in a default judgment proceeding must prove they are entitled to the damages claimed.' [Citation]." (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 288.) "[T]he plaintiff must affirmatively establish his entitlement to the specific judgment requested." (Id. at p. 287.)

Plaintiff declares the following. He

was employed by Defendant as an in-home caregiver from approximately October 25, 2023, through his termination on November 25, 2024. (Dyer Jr. Decl., ¶ 3.) His regular hourly rate of pay was \$16.90 per hour. My regular weekly work schedule was as follows: Sunday, 9:00 p.m. to 6:00 a.m. (9 hours per shift); and Monday through Thursday, 10:00 p.m. to 6:00 a.m. (8 hours per shift). (Id. ¶ 4.) His total hours worked per week were 41 hours (9 + 8 + 8 + 8 + 8), and my regular weekly earnings were \$692.90 (41 hours × \$16.90). (Ibid.) Over the course of his employment, Plaintiff worked approximately 284 workdays (57 Sundays, 57 Mondays, 56 Tuesdays, 57 Wednesdays, and 57 Thursdays), for a total of approximately 2,329 hours (57 shifts × 9 hours, plus 227 shifts × 8 hours). (Id. ¶ 5.)

Plaintiff was

required to remain on the premises at all times during his shifts. While he was sometimes able to rest informally after clients fell asleep, Plaintiff was never permitted to leave the premises and was required to remain on call to assist the clients he cared for at any moment. As a result, he never received a duty-free, uninterrupted meal period of at least 30 minutes, and never received duty-free, uninterrupted rest periods of 10 minutes for every four hours worked (or major fraction thereof) during any of his shifts. (Id. ¶ 6.) Thus, Plaintiff is owed one meal period premium of \$16.90 for each of his 284 workdays, and one rest period premium of \$16.90 each for each of his 284 workdays. (Id. ¶ 8.)

Once Plaintiff was

terminated on November 25, 2024, Defendant did not pay Plaintiff all wages then earned and unpaid, including the meal and rest period premiums. (Id. ¶ 9.) More than 30 days have passed since Plaintiff's termination without Defendant paying Plaintiff the wages owed. Accordingly, Plaintiff is entitled to waiting time penalties equal to 30 days of wages pursuant to Labor Code section 203. His average daily wage, based on his weekly earnings of \$692.90 divided by my five-day workweek, was \$138.58. (Ibid.)

During Plaintiff's

employment, Defendant failed to provide Plaintiff with accurate, complete, itemized wage statements as required by California Labor Code section 226(a). Thus, Plaintiff is entitled to the greater of actual damages or statutory penalties not to exceed \$4,000 under California Labor Code section 226(e). (Id. ¶ 10.)

Next, Plaintiff

declares that he received inaccurate wage statements through November 25, 2024, on a biweekly basis. From August 14, 2024 through November 25, 2024, I received approximately eight (8) wage statements that were noncompliant with Labor Code section 226(a). (Id. ¶ 11.)

Pursuant to Labor Code section 226(e), statutory damages are calculated at fifty dollars (\$50) for the initial violation and one hundred dollars (\$100) for each subsequent violation. Accordingly, Plaintiff is entitled to statutory damages of \$50 for the first pay period, and \$700 for the seven subsequent pay periods, for a total of \$750 in statutory damages. (Ibid.)

Next, Plaintiff

asserts that Defendant required him to use his personal cell phone to communicate with Defendant and to clock in and out of his shifts. (Id. ¶ 12.) Defendant knew Plaintiff could not perform his job duties without his cell phone, yet Defendant never reimbursed Plaintiff for any portion of those expenses. Plaintiff paid approximately \$150 per month for my cell phone service while working for Defendant. A reasonable stipend of \$30.00 per month for the work-related use of Plaintiff's personal cell phone is appropriate under the circumstances. Plaintiff's employment spanned exactly 13 months (October 25, 2023 through November 25, 2024), yielding \$390.00 in unreimbursed cell phone expenses (13 months × \$30.00/month). (Id. ¶ 12.)

Plaintiff declares

that after he raised concerns with Defendant in November 2024 about its failure to provide the lawfully required meal and rest breaks, Defendant removed Plaintiff from his regular scheduled shift and terminated him shortly after. (Id. ¶ 14.)

From the time of

Plaintiff's termination on November 25, 2024 until August 14, 2026, Plaintiff was unable to obtain other employment despite diligent efforts. (Id. ¶ 15.)

Specifically, Plaintiff has sought employment by submitting more than fifty applications through services such as Indeed, Blue Crew, Instawork, and GetGigs. He applied directly to several companies, and had interviews with Target, Rapid Plumbing, Los Angeles Property Management, another multi-site property management company called Confidential, The Gardens Casino, The Foundation Works, and the California Department of Corrections. Plaintiff just started a job on August 14, 2026 as Event Staff for CSC Security. (Ibid.)

Pursuant to

California Labor Code section 1102.5(f), Defendant is also liable for a civil penalty of up to \$10,000 for each violation of section 1102.5, which they committed for (1) removing Plaintiff from his regular shift; and (2) terminating Plaintiff's employment, in retaliation for opposing Defendant's unlawful conduct in denying me my meal and rest breaks.

On December 5,

2024, through counsel, Plaintiff caused to be sent to Defendant a written request for his personnel records pursuant to California Labor Code section 1198.5, and for his wage records pursuant to California Labor Code sections

226(b) and (c). Defendant acknowledged receipt of these requests but never produced the requested records. Plaintiff is therefore entitled to statutory penalties of \$750 for failure to produce personnel records and \$750 for failure to produce wage records, pursuant to Labor Code Sections 226(f) and 1198.5(k). (Id. ¶ 18.)

To conclude, Plaintiff provides that he has suffered \$10,000.00 in emotional distress/general damages, \$55,144.70 in loss of earnings to date, and the additional \$36,396.60 in special damages listed in Attachment 2(k), including \$20,000.00 in Labor Code section 1102.5 penalties.[1] This equals \$101,541.30.

As for interest, Plaintiff requests \$1,211.11, which was calculated at the rate of 7% per annum from date of termination through June 5, 2026. However for cell phone reimbursement, interest is calculated from approximately May 25, 2024, the midpoint of Plaintiff's employment period, representing the average date on which the monthly expenses were incurred. (Dyer Jr. Decl., ¶ 20.)

As for attorney's fees, Plaintiff requests \$17,610.26 in fees pursuant multipole provisions of the Labor Code, including Labor Code sections 218.5, 226(e), 226(h), 2802(c), 1102.5(j), and 1198.5(l). (Id. ¶ 14, Ex. 4.) The amount of fees requested is incorrectly calculated from the fee schedule found in the Local Rules rule 3.214(a). Furthermore, the attorney's fees request in Plaintiff's Court Judgment CIV-100 form differs from the request in Plaintiff's proposed form of Judgment on the JUD-100 form. Plaintiff's Court Judgment CIV-100 form requests a total of \$15,000.00 in attorney's fees. Attachment 2(k) to the Statement of Damages also requests only \$15,000.00 in fees.

Plaintiff has otherwise provided the necessary documents per California Rules of Court Rule 3.1800(A), including a proposed form of judgment and summary of the case. Plaintiff has also filed a dismissal of all parties against whom judgment is not sought and properly authenticated all submitted exhibits.

IV.

CONCLUSION

Plaintiff's

Request for Default Judgment is CONTINUED to Friday, September 11, 2026 to allow Plaintiff to address the above deficiencies.

Dated this 28th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court